



CITY COUNCIL MEETING MINUTES

November 26, 2024

CALL TO ORDER:

The Jackson City Council met in regular session in council chambers and was called to order at 6:31 p.m. by Mayor Daniel J. Mahoney.

PLEDGE OF ALLEGIANCE AND INVOCATION:

Council joined in the Pledge of Allegiance. Invocation was given by First Ward Councilmember Arlene Robinson.

ROLL CALL:

Present: Mayor Daniel Mahoney, First Ward Councilmember Arlene Robinson, Vice Mayor/Second Ward Councilmember Freddie Dancy, Third Ward Councilmember Angelita Gunn, Fourth Ward Councilmember Conner Wood, Fifth Ward Councilmember Shalanda Hunt, and Sixth Ward Councilmember Will Forgrave.

Absent: none.

Also present: City Manager Jonathan Greene, City Attorney Matthew Hagerty, City Clerk Andrea Muray, City Assessor Jason Yoakam, Director of Police and Fire Services Elmer Hitt, Director of Community Development Shane LaPorte, Director of Public Works Mike Osborne, and City Engineer Troy White.

ADOPTION OF AGENDA:

Motion was made by Councilmember Wood, seconded by Councilmember Hunt to adopt the agenda as presented. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

PRESENTATIONS/PROCLAMATIONS:

A. Fifth Ward Councilmember Shalanda Hunt

Mayor Mahoney presented Councilmember Hunt with a proclamation thanking her for her service on Council.

PUBLIC HEARINGS:

A. Meterless Parking

Motion was made by Vice Mayor Dancy, seconded by Councilmember Robinson to recess as City Council and convene as a Board of Review. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

Motion was made by Councilmember Hunt, seconded by Councilmember Wood to open the public hearing. Vote was done by voice with all in favor. Motion carried.

Correspondence was sent by St. Paul’s Episcopal Church at 309 S. Jackson and Bridgepoint Development, LLC at 134 MLK Jr. Drive in objection to the special assessment.

Patrick Colligan of 216 S. MLK Jr. Drive spoke in opposition to the amount of his special assessment.

Motion was made by Councilmember Wood, seconded by Councilmember Forgrave to close the public hearing. Vote was done by voice with all in favor. Motion carried.

Motion was made by Vice Mayor Dancy, seconded by Councilmember Wood to approve the resolution confirming Special Assessment Roll No. 4307. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Gunn, Wood, and Hunt (5). Nays: Councilmembers Robinson and Forgrave (2). Motion carried.

Motion was made by Councilmember Wood, seconded by Councilmember Robinson to adjourn as a Board of Review and reconvene as the City Council. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

CITIZEN COMMENTS:

Citizen comments were heard and the meeting continued.

CONSENT CALENDAR:

- A. Minutes of the November 12, 2024, Regular Meeting of the Jackson City Council**
- B. Resolution- 2025 City Council Meeting Dates**
Approve a resolution establishing the City Council Meeting Dates for the 2025 Calendar Year.
- C. MLCC Transfer of Ownership - S & W Futures, LLC**
Accept and place on file the notice from the Michigan Liquor Control Commission regarding the transfer of ownership of a liquor license from The Music Box, LLC to S & W Futures, LLC (300 W North Street).
- D. Special Event Application - 12 Bars of Christmas Holiday Crawl**
Approve a request from the Jackson DDA to host 12 Bars of Christmas Holiday Crawl in downtown Jackson.
- E. Special Event Application: Christmas in the City**
Approve a request from the Jackson DDA to host Christmas in the City of downtown Jackson.

Motion was made by Councilmember Gunn, seconded by Councilmember Hunt to approve the consent calendar. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

OTHER BUSINESS:

A. East Side Economic Development Update

City Manager Jonathan Greene provided an update on the East Side Economic Development Plan.

B. Ordinance No. 2024-09 – Youth Council Age Eligibility

Recommendation: Approve the second reading/final adoption of Ordinance No. 2024-09, amending the age requirement for the Youth Council to include eligibility of middle school students and high school students.

Motion was made by Vice Mayor Dancy, seconded by Councilmember Hunt to approve the second reading and final adoption of Ordinance No. 2024-09 amending the age requirement for the Youth Council to include eligibility of middle school students and high school students. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

NEW BUSINESS:

A. Amendment 1 – 22-007 Trail Construction Engineering Contract.

Recommendation: Approve Amendment 1 to the 22-007 Trail Construction Engineering contract with Hubble, Roth & Clark, Inc. of Jackson, Michigan, at a not-to-exceed cost of \$24,485.00, and authorize the City Manager and City Engineer to sign the appropriate document.

Motion was made by Vice Mayor Dancy, seconded by Councilmember Forgrave to approve Amendment 1 to the 22-007 Trail Construction Engineering contract with Hubble, Roth & Clark, Inc. of Jackson, Michigan, at a not-to-exceed cost of \$24,485.00, and authorize the City Manager and City Engineer to sign the appropriate document. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

B. Change Order 1 to the 2024 Pavement Marking contract with PK Contracting, Inc.

Recommendation: Approve Change Order 1 to the 2024 Pavement Marking contract with PK Contracting, Inc. in the increased amount of \$27,333.88 to balance contract quantities to match quantities placed in the field and authorize the City Manager and City Engineer to execute the appropriate document.

Motion was made by Councilmember Gunn, seconded by Councilmember Wood to approve Change Order 1 to the 2024 Pavement Marking contract with PK Contracting, Inc. in the increased amount of \$27,333.88 to balance contract quantities to match quantities placed in the field and authorize the City Manager and City Engineer to execute the appropriate document. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

C. Amendment 1 to the Drinking Water State Revolving Fund (DWSRF) Construction Administration Services contract.

Recommendation: *Approve Amendment 1 to the Fiscal Year 2023 Drinking Water State Revolving Fund (DWSRF) Construction Administration Services professional services contract with Fishbeck, Inc. of Grand Rapids, Michigan in the amount of \$ 934,850.00 and authorize the City Manager, Director of Public Works and City Engineer to sign the appropriate document.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Forgrave to approve Amendment 1 to the Fiscal Year 2023 Drinking Water State Revolving Fund Construction Administration Services professional services contract with Fishbeck, Inc. of Grand Rapids, Michigan in the amount of \$934,850.00. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

D. Change Order No. 2 to the Wastewater Treatment Plant and Myrtle Lift Station Improvements Contract with Heaney General Contracting, Inc.

Recommendation: Approve Change Order No. 2 to the Wastewater Treatment Plant and Myrtle Lift Station Improvements Contract with Heaney General Contracting, Inc. for an extended contract time with Substantial Completion on December 31, 2024, and authorize the City Manager and Director of Public Works to execute the appropriate documents.

Motion was made by Vice Mayor Dancy, seconded by Councilmember Gunn to approve Change Order No. 2 to the Wastewater Treatment Plant and Myrtle Lift Station Improvements Contract with Heaney General Contracting, Inc. for an extended contract time with Substantial Completion on December 31, 2024, and authorize the City Manager and Director of Public Works to execute the appropriate documents. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

E. Amend Motion for Contract Award with Seven Brothers Painting, Inc.

Recommendation: *Amend the motion previously adopted at the November 12, 2024, City Council meeting to state: Approval of the Contract Award for the West Clarifier Re-Paint & Repair project, to Seven Brothers Painting Inc., of Shelby Township, MI, in the amount of \$776,000, to be funded with \$606,046.25 of the City Local Recovery Funds under the American Rescue Plan Act, with the reallocation of \$3,000 of these fund from the Engineering & Inspection Services to Construction, and remaining \$167,953.75 from General Fund.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Wood to amend the motion previously adopted at the November 12, 2024, City Council meeting to state: Approval of the Contract Award for the West Clarifier Re-Paint & Repair project, to Seven Brothers Painting Inc., of Shelby Township, MI, in the amount of \$776,000, to be funded with \$606,046.25 of the City Local Recovery Funds under the American Rescue Plan Act, with the reallocation of \$3,000 of these fund from Engineering & Inspection Services to Construction, and remaining \$167,953.75 from General Fund. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

F. Exchange of Real Property Owned by the City

Recommendation: *Approve an Agreement for the Exchange of Real Property and related Development Agreement between the City of Jackson; CCM-500 Griswold Jackson LLC; and Cardinal Capital Management, Inc. or its assignee, whereby CCM-500 Griswold Jackson LLC shall convey and the City shall receive: 500 Griswold Street and the City shall convey and Cardinal Capital Management, Inc. or its assignee shall receive: 226 W. Louis Glick,; 232 Van Buren Street; and 200 S. Martin Luther King Jr. Blvd. Authorize the City Manager and City Attorney to make minor modifications to the agreements as may be necessary to effectuate the transfer*

Motion was made by Councilmember Forgrave, seconded by Vice Mayor Dancy to approve an agreement for the exchange of real property and related development agreement between the City of Jackson; CCM-500 Griswold Jackson LLC; and Cardinal Capital Management, Inc. or its assignee, whereby CCM-500 Griswold Jackson LLC shall convey and the City shall receive: 500 Griswold Street and the City shall convey and Cardinal Capital Management, Inc. or its assignee shall receive: 226 W. Louis Glick,; 232 Van Buren Street; and 200 S. Martin Luther King Jr. Blvd and authorize the City Manager and City Attorney to make minor modifications to the agreements as may be necessary to effectuate the transfer. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

G. Budget Amendment and MDCR Grant Award Acceptance

Recommendation: *Authorize Police and Fire Services Director Elmer Hitt to accept the MDCR grant and amend the budget as shown in the attached resolution.*

Motion was made by Councilmember Wood, seconded by Councilmember Forgrave to authorize Police and Fire Services Director Elmer Hitt to accept the MDCR grant and amend the budget as shown in the attached resolution. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

CITY COUNCILMEMBER'S COMMENTS:

Mayor Mahoney, Vice Mayor Dancy, and Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave all offered comments.

MANAGER'S COMMENTS:

City Manager Jonathan Greene offered comments.

ADJOURNMENT:

No further business being offered, a motion to adjourn was made by Vice Mayor Dancy, seconded by Councilmember Forgrave. Mayor Mahoney adjourned the meeting at 8:23 p.m.